

prayer for relief.

18. 9:00 AM CASE NUMBER: C25-02933
CASE NAME: OFEILA NOROOZI VS. SANDEEP WALIA, MD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: WALIA, SANDEEP, MD
TENTATIVE RULING:

Before the Court is Defendant Sandeep Walia, M.D. (“Defendant” or “Walia”)’s Demurrer to Plaintiff Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi (collectively, “Plaintiffs”) First Amended Complaint.

Defendant demurs to Plaintiffs’ causes of action for (1) professional negligence, (4) Negligent infliction of emotional distress (Ofelia Noroozi), (5) Negligent infliction of emotional distress (Payman Noroozi), (6) Negligent infliction of emotional distress (Sahar Noroozi), and (7) fraud.

For the following reasons, the Demurrer is **sustained**, with leave to amend.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

As a threshold issue, the Court declines to sustain the Demurrer on the grounds of uncertainty. Uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly’s of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, *Civil Procedure Before Trial* (The Rutter Group 2011) § 7:84, p. 7(l)-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

While true that the FAC relies largely on group allegations against all Defendants, it is not so unclear that Defendant cannot even determine what he must respond to. That said, because the Court sustains the Defendant’s demurrer with leave to amend, it would behoove the Plaintiffs to amend with greater clarity as between all the Defendants.

1. Professional Negligence

First, Defendant demurs to this cause of action on the grounds that it is duplicative of Plaintiffs' wrongful death cause of action.

A demurrer may be sustained when a cause of action is duplicative of another cause of action and thus adds nothing to the complaint by way of fact or theory of recovery. (*Palm Springs Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290; *Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135; but see *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 889-890 [duplicative causes of action are "the sort of defect that, if it justifies any judicial intervention at all, is ordinarily dealt with most economically at trial, or on a dispositive motion such as summary judgment."].)

Flowers v. Torrance Memorial Hospital Medical Center (1994) 8 Cal.4th 992, 995 is instructive with respect to duplicative causes of action in the medical negligence context. The Supreme Court of California considered the distinction between ordinary and professional negligence and stated that the distinction between "ordinary" and "professional" negligence is relevant "primarily when the Legislature has statutorily modified, restricted, or otherwise conditioned some aspect of an action for malpractice not directly related to the elements of negligence itself," such as with the statute of limitations or the application of the Medical Injury Compensation Reform Act ("MICRA"). (*Flowers, supra*, 8 Cal.4th at p. 998-999.) Nonetheless, the court stated that the "substance of such actions on the issues of duty, standard of care, breach, and causation remains unaffected." (*Id.* at p. 999.) The court rejected the appellate court's finding that a factual predicate "can give rise to two independent obligations to exercise due care according to two different standards," calling it a "legal impossibility" because "a defendant has only one duty, measured by one standard of care, under any given circumstances." (*Id.* at p. 1000.)

Here, Plaintiffs' causes of action for professional negligence and wrongful death are based on the same factual predicate: Amin Noroozi's allegedly poor care at John Muir Health following a diving accident. Furthermore, a review of Plaintiffs' first cause of action for professional negligence and third cause of action for wrongful death does not reveal different theories of liability. Thus, the Court finds that Plaintiffs' first and third causes of action are duplicative.

Defendant's demurrer to the first cause of action is **sustained**, with leave to amend.

4, 5, 6. Negligent Infliction of Emotional Distress

Defendant argues that Plaintiffs have not alleged facts sufficient to state their causes of action for negligent infliction of emotional distress.

"[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress-a reaction beyond

that which would be anticipated in a disinterested witness and which is not an abnormal response to the circumstances.” (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 667-668; accord *Downey v. City of Riverside* (2024) 16 Cal.5th 539, 550.) “Neither our precedent nor considerations of tort policy support requiring plaintiffs asserting bystander emotional distress claims to show contemporaneous perception of the causal link between the defendant's conduct and the victim's injuries.” (*Downey, supra*, 16 Cal.5th at p. 560.) Nevertheless, the Supreme Court’s analysis in *Bird v. Saenz* (2002) 28 Cal.4th 910 “remains the controlling precedent for negligent infliction of emotional distress claims arising from the provision of deficient medical care to a close relative.” (*Id.* at p. 560, fn. 11.)

“*Bird* placed particular emphasis on how difficult-often impossible-it generally is for laypersons to recognize in the moment that a course of medical treatment is causing injury. Even when plaintiffs are present at the scene of the injury-causing event and observe conduct that they later realize caused injury to a close relative, their lack of medical knowledge will ordinarily keep them from being ‘then aware that it [was] causing injury to the victim.’ [Citation].” (*Downey, supra*, 16 Cal.5th at p. 554.) “In such cases, the injury-causing events or conduct are not traumatizing because they are perceived as injury-causing only in retrospect, when the observer is affected by the event’s results.” (*Ibid.*) “*Bird* itself made clear that the injury caused by medical negligence is different in this regard from many other types of injury- producing events. We explained that the invisibility of injury-causing events resulting from deficient medical care makes a typical medical negligence case distinguishable from, for instance, a case arising from ‘an explosion, traffic accident, or electrocution.’ [Citation].” (*Ibid.*)

Here, Plaintiffs allege that Amin Noroozi died following a traumatic diving accident “due to Defendants’ gross negligence in managing life-threatening complications that should have been anticipated and treated according to established medical protocols.” (FAC at ¶ 1.) They allege several “systemic failures in post-surgical care of Amin Noroozi’s spinal cord injury” (*id.* at 16:9) including “treat[ing] Amin with multiple drugs that were contraindicated for his specific condition” (*id.* at 17:10-11) which “exacerbated his cardiovascular instability and contributed to his deterioration.” (*Id.* at ¶ 52(A).) They also allege that “Amin experienced severe thermoregulatory dysfunction” as a result of Defendants failure to implement “appropriate temperature monitoring and cooling protocols from the outset.” (*Id.* at ¶ 52(B).) Plaintiffs allege that Defendants inadequately responded to Amin Noroozi’s severe hypokalemia and failed to adequately manage his sodium levels. (FAC at ¶ 52(D).) Plaintiffs further allege Defendants failed to implement basic infection screening protocols (*id.* at ¶ 52(E)), exacerbated decedent’s acute kidney injury (*id.* at ¶ 52(F)), and that Defendants “failed to properly assess and treat neurogenic shock resulting from Amin’s high cervical injury.” (*Id.* at ¶ 52(G).

Plaintiffs also allege that Defendants failed to “effectively address sepsis, a 109-degree temperature, and unbalanced potassium levels[.]” (*Id.* at ¶ 128.) They further allege that Ofelia Noroozi, Payman Noroozi, and Sahar Noroozi were each at Amin Noroozi’s bedside when his fever spiked to 109 degrees and he was not provided with any intervention besides Ibuprofen. (*Id.* at ¶¶ 131, 138, 144.)

The Supreme Court in *Bird* drew an important distinction between circumstances involving unperceived medical errors in providing treatment and the circumstances in *Ochoa v. Superior Court*

(1985) 39 Cal.3d 159, where the “injury-producing event was the failure of custodial authorities to respond significantly to symptoms obviously requiring immediate medical attention.” (*Bird, supra*, 28 Cal.4th at pp. 919-920.) In drawing this distinction, the Court explained that “[s]uch a failure to provide medical assistance, as opposed to a misdiagnosis, unsuccessful treatment, or treatment that turns out to have been inappropriate only in retrospect, is not necessarily hidden from the understanding awareness of a layperson.” (*Id.* at p 920.) Although Plaintiffs argue that the alleged conduct in their amended complaint falls within the former category (see Opp. at 6:18-24), the pleaded facts appear to place the action within the latter category. Plaintiffs’ allegations suggest continued misdiagnosis, unsuccessful treatment, and use of inappropriate treatments of the decedent during his hospitalization rather than a complete failure to diagnose his condition or provide any treatment to him. (*Bird, supra*, 28 Cal.4th at pp. 921 [“In any event, a rule permitting bystanders to sue for NIED on account of unperceived medical errors hidden in a course of treatment cannot be reconciled with *Thing*’s requirement that the plaintiff be aware of the connection between the injury-producing event and the injury.”].)

For these reasons, Defendant’s demurrer to the fourth, fifth, and sixth causes of action for negligent infliction of emotional distress is **sustained**, with leave to amend.

7. Fraud

Defendant demurs to Plaintiffs’ cause of action for fraud on the grounds that it lacks the requisite specificity—that the FAC “does not identify any specific misrepresentation made by defendant Dr. Sandeep Walia, nor does it allege that Dr. Walia personally participated in, authorized, or had any role in the hospital’s advertising, marketing, or public branding activities.” (Dem. at § V(E).) Plaintiffs essentially concede this point in opposition. (Opp. at 12:25-26 [“Plaintiffs concedes that it would strengthen and clarify their claim to plead additional, more specific facts regarding (1) Dr. Walia’s participation in Defendants’ scheme to defraud the public (including Plaintiffs) and/or (2) his individual concealments/misrepresentations made directly to Plaintiffs regarding his/JMH’s qualifications and abilities to competently treat and care for Amin.”].)

The demurrer to the seventh cause of action is **sustained**, with leave to amend.

19. 9:00 AM CASE NUMBER: C25-03121

CASE NAME: JACOB CANALE VS. KELLY BOZARTH

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BOZARTH, KELLY

TENTATIVE RULING:

Before the Court is Defendants Center for Social Dynamics, LLC, and Kelly Bozarth’s Demurrer to Plaintiff’s Complaint. The Complaint alleges a single cause of action for violation of the Private Attorneys General Act (“PAGA”), California Labor Code § 2698 et seq.